

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CLCL062481: BANK OF AMERICA N.A. vs ERIC HART
08/28/2026 in Department 41
Demurrer**

Defendant Eric Hart's Demurrer to the Complaint is OVERRULED. The general demurrer for failure to allege sufficient facts is overruled on the grounds that the breach of contract claim is sufficiently stated. The special demurrer for uncertainty is overruled on the ground that special demurrers are not allowed in limited civil actions such as this one. (Code Civ. Proc., § 92, subd. (c).)

Defendant's Motion to Strike portions of the Complaint is DENIED. The motion fails to quote in full the passages in the Complaint that request attorney fees, claim interest, or allege a vague or unspecified claim for damages without factual support. (Cal. Rules of Court, rule 3.1322; Okorie v. Los Angeles Unified School Dist. (2017) 14 Cal.App.5th 574, 589, disapproved on another ground in Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010–1012 & fn. 2.)

Defendant is ordered to answer or otherwise respond within 20 (Twenty) calendar days.

Plaintiff is ordered to give notice.